

Direct Examination of Email Expert Witness

This document is an excerpt from a preliminary hearing of a theft of email case conducted by Los Angeles County Deputy District Attorney Jonathan Fairtlough. Included here is the direct examination of a computer forensic expert, Los Angeles District Attorney Investigator Richard Goldston. Mr. Goldston's testimony addresses his education and related experience that qualifies him to be regarded as a computer forensic expert. To obtain the full transcript, contact DDA Fairtlough at 213-580-3259

THE CLERK: PLEASE STATE YOUR FULL NAME AND SPELL YOUR LAST NAME FOR THE RECORD.

THE WITNESS: RICHARD GOLDSTON. R-I-C-H-A-R-D. G-O-L-D-S-T-O-N.

DIRECT EXAMINATION
BY MR. FAIRTLOUGH:

Introduction

Q: SIR, WHAT DO YOU DO FOR LIVING?

A: I AM A PEACE OFFICER FOR THE STATE OF CALIFORNIA, DISTRICT ATTORNEY'S INVESTIGATOR, ASSIGNED TO THE SOUTHERN CALIFORNIA HIGH-TECH TASK FORCE.

Q: SIR, HOW LONG HAVE YOU BEEN A PEACE OFFICER?

A: ALMOST 32 YEARS.

The Problem

Q: NOW, WHEN YOU SPOKE WITH MR. WILLIAM JERRY KEITH, HOW DID HE IDENTIFY HIMSELF IN RELATION TO WHAT WE WILL CALL LACOE, L.A. COUNTY OFFICE OF EDUCATION?

A: HE WAS THE NETWORK MANAGER.

Q: DID HE INDICATE THE ISSUE THAT BROUGHT THE PROBLEM TO LACOE'S ATTENTION?

A: YES.

Q: WHAT, IF ANYTHING, DID HE TELL YOU OCCURRED?

MR. SHEAKS: OBJECTION, RELEVANCE, YOUR HONOR.

THE COURT: OVERRULED.

THE WITNESS: HE EXPLAINED HOW AN E-MAIL WAS SENT TO THE DIRECTOR OF THE INFORMATION TECHNOLOGY OR THEIR NETWORK SYSTEMS FOR THEIR DIRECTOR.

Objection to the Original Email

MR. FAIRTLOUGH: YOUR HONOR, I HAVE IN MY HANDS A DOCUMENT. IT'S APPROXIMATELY 12 PAGES IN LENGTH. I HAVE PREVIOUSLY SHOWN IT TO COUNSEL, BUT I'LL SHOWN IT AGAIN. MAY IT BE MARKED AS PEOPLE'S 1 FOR IDENTIFICATION?

THE COURT: YES, SO MARKED.

MR. FAIRTLOUGH: I AM PLACING A P-1 IN THE BOTTOM RIGHT HAND CORNER. MAY I APPROACH THE WITNESS?

THE COURT: YES.

BY MR. FAIRTLOUGH:

Q: SIR, SHOWING YOU WHAT HAS BEEN MARKED AS P-1; HAVE YOU SEEN THIS DOCUMENT BEFORE?

A: YES.

Q: WHAT IS THIS DOCUMENT?

A: THIS DOCUMENT WAS GIVEN TO ME BY MR. KEITH.

Q: WHAT DOES THIS PARTICULAR DOCUMENT PURPORT TO BE?

A: THIS IS A DOCUMENT THAT HE SAID WAS DELIVERED TO THE SUPERVISOR IN REGARD TO TWO COUNTY EMPLOYEES, E-MAILING EACH OTHER BACK AND FORTH.

Q: IS THIS A PRINTOUT - -

MR. SHEAKS: YOUR HONOR, EXCUSE ME. I'LL INTERPOSE AN OBJECTION, HEARSAY, AS TO THE DOCUMENT WHICH HE SAYS IS ALLOWED FOR BY THE OFFICER TO - - WHAT WE ARE ACTUALLY GOING THROUGH IS MULTIPLE LEVELS OF HEARSAY. THIS IS A DOCUMENT THAT PURPORTS TO BE FROM A COMPUTER. THERE ARE WORDS ON THE DOCUMENT THAT I WOULD OFFER ARE ABOUT TO BE UTTERED BY THIS WITNESS THAT ARE GOING TO BE OFFERED FOR THE TRUTH, AND SOMEBODY SAYS THIS DOCUMENT IS TRANSFERRED OR TRANSMITTED OR MADE IN SOME WAY, RECOVERED IN SOME WAY AND GIVEN TO THIS OFFICER. THERE IS A LOT OF ATTENUATION THAT I DON'T THINK IS SUBSUMED UNDER POST QUALIFIED HEARSAY EXCEPTION FOR THE PRELIMINARY HEARING.

THE COURT: I IMAGINE YOU CAN MAKE THAT OBJECTION THROUGHOUT THE WHOLE PRELIM BECAUSE IT IS THE ESSENCE OF THIS TYPE OF CASE. YOU WANT TO RESPOND AT THIS TIME?

MR. FAIRTLOUGH: CERTAINLY. WITH THIS PARTICULAR DOCUMENT, IT IS NOT AT THIS POINT THE INTENTION OF THE PEOPLE TO OFFER THE CONTENTS OF THIS PARTICULAR DOCUMENT, MERELY THE FACT THAT THE DOCUMENT WAS RECEIVED BY INVESTIGATOR GOLDSTON. SOME OF THE INFORMATION ON IT WILL THEN LATER BE REFERENCED TO AN ACTUAL INVESTIGATION OF THE HARD DRIVE OF THE DEFENDANT DONE BY THIS WITNESS. THIS IS FOR REFERENCE ONLY. I AM NOT INTRODUCING THE CONTENTS OF THIS PARTICULAR E-MAIL, MERELY WHAT MR. GOLDSTON WAS TOLD THAT LED TO HIS FURTHER ACTIONS.

THE COURT: BASED ON THAT, THE OBJECTION IS OVERRULED.

MR. SHEAKS: MAY I HAVE A CONTINUING OBJECTION ON THE OTHER DOCUMENTS FORTHCOMING IN THIS?

THE COURT: YES, YOU MAY.

The Initial Investigation

Q: NOW, DIRECTING YOUR ATTENTION TO THE CONVERSATION WITH MR. KEITH,(VICTIMS IT MANAGER) WHAT, IF ANYTHING, DID MR. KEITH TELL YOU ABOUT THE STEPS THAT HE TOOK IN ORDER TO TRY AND LOCATE INFORMATION WITH REGARD TO THE INFORMATION ABOUT THIS E-MAIL?

A: HE STATED THAT HE GOT A GROUP OF HIS STAFF TOGETHER WITH HIMSELF AND CONDUCTED AN INVESTIGATION, RESEARCHED THE COMPUTERS TO TRY AND DETERMINE WHERE THE E-MAIL HAD COME FROM.

Q: AND WHAT METHODS DID HE IN FACT USE TO MAKE THAT DETERMINATION?

A: WELL, FIRST THEY READ THE HEADERS TO THE E-MAIL WHICH IS A PART THAT YOU DO NOT SEE HERE AND DETERMINE THAT A PARTICULAR IP ADDRESS, (IT IS INTERNET PROTOCOL NUMBER), SEQUENCE WAS USED, AND THEY TRACKED IT DOWN, AND IT LED TO AN INDIVIDUAL IN THEIR I.T. DEPARTMENT.

Q: SO THE ACTUAL SENDING IP FOR THIS E-MAIL CAME BACK TO A PARTICULAR INDIVIDUAL; IS THAT CORRECT?

A: YES.

Expert's Technical Background

Q: SIR, COULD YOU PLEASE EXPLAIN FOR THE COURT, YOUR BACKGROUND AND EXPERTISE WITH REGARD TO THE INVESTIGATION OF COMPUTER CRIMES, SPECIFICALLY FOCUSING ON YOUR TRAINING AND EXPERTISE WITH REGARD TO THE INVESTIGATION OF THE USE OF E-MAIL SYSTEMS IN ORDER TO COMMIT A COMPUTER CRIME?

A: IN REGARD TO THE ACTUAL INVESTIGATION, I ATTENDED COLLEGE AT CALIFORNIA STATE FULLERTON, LEARNING WINDOWS NT, NETWORKING OF COMPUTERS. I HAVE TAKEN ADVANCED TRAINING CENTER CLASSES ON THE INTERNET AND ON NETWORKING AND THE TRAINING CENTER OF THE DEPARTMENT OF JUSTICE, WHITE COLLAR CRIMES FOUNDATION. AND THE LAST THREE YEARS I HAVE HAD EXTENSIVE TRAINING PLUS I TEACH FOR THE ADVANCED TRAINING CENTER FOR INTERNET INVESTIGATIONS.

Q: NOW, SIR, FOR HOW MANY YEARS HAVE YOU BEEN INVESTIGATING HIGH-TECH CRIMES?

A: I HAVE BEEN A COMPUTER FORENSIC EXPERT FOR 15 YEARS, SINCE 1985.

Q: PRIOR TO YOUR ASSIGNMENT WITH THE SOUTHERN CALIFORNIA HIGH-TECHNOLOGY TASK FORCE, WHAT WAS YOUR ASSIGNMENT?

A: I WAS THE LEAD INVESTIGATOR FOR THE HIGH-TECH COMPUTER INVESTIGATIONS UNIT HERE IN THE DISTRICT ATTORNEY'S OFFICE.

Q: HOW MANY YEARS DID YOU HOLD THAT ASSIGNMENT?

A: THREE YEARS.

Q: APPROXIMATELY HOW MANY CASES INVOLVING THE USE OF E-MAIL HAVE YOU INVESTIGATED IN YOUR CAREER?

A: AS AN INVESTIGATOR I WOULD SAY PROBABLY AT LEAST 50. AS A FORENSIC EXPERT, LITERALLY HUNDREDS.

Q: HAVE YOU RECEIVED TRAINING ON THE METHODS THAT WINDOWS NT EXCHANGE SERVERS USE IN ORDER TO SEND AND TRANSMIT ELECTRONIC MESSAGES KNOWN AS E-MAIL?

A: YES.

Q: HAVE YOU ALSO RECEIVED TRAINING WITH REGARD TO THE MACINTOSH SYSTEM?

A: YES.

Explaining Email and IP Addresses

Q: NOW, SIR, CAN YOU EXPLAIN BRIEFLY FOR THE COURT WHAT AN INTERNET PROTOCOL ADDRESS IS?

A: TCP/IP IS A SEQUENCE OF NUMBERS ASSIGNED TO COMPUTERS THAT THE NETWORKS USE TO BE ABLE TO MOVE DATA FROM ONE COMPUTER TO ANOTHER. IT IS A VERY SIMPLE SYSTEM AND IT IS A TRANSFER PROTOCOL THAT IS USED.

Q: SO FOR EXAMPLE, IF I HAD A E-MAIL MAILBOX ON A COUNTY SYSTEM, I ALSO HAVE FOR THE PURPOSE OF THAT E-MAIL SYSTEM, AN IP ADDRESS SO THAT THE MAIL CAN BE DIRECTED TO THE APPROPRIATE MAILBOX WHERE I CAN VIEW IT?

A: YES.

Q: WOULD IT BE A FAIR ANALOGY TO SAY THAT AN IP ADDRESS IS LIKE A STREET ADDRESS?

A: IN MOST CASES. THERE ARE EXCEPTIONS FOR DIAL UPS ON OUTSIDE INFORMATION. BUT FOR THE INTERNAL SYSTEMS, YOU ARE TALKING ABOUT PERMANENT ASSIGNMENTS.

Facts About Victim's System

Q: LET'S TALK ABOUT A LITTLE BIT ABOUT THE MAIL SYSTEM USED BY THE L.A. COUNTY OFFICE OF EDUCATION. FIRST, WHAT TYPE OF SYSTEM WERE THEY USING?

A: MACINTOSH AND WINDOWS MAIL SERVERS.

Q: AND WHAT WAS THE E-MAIL PROGRAM AND SERVER SYSTEM THAT WAS BEING USED?

A: THEY WERE USING A WINDOWS NT EXCHANGE SERVER.

Q: WERE SOME OF THE PARTICULAR COMPUTERS USING FOR EXAMPLE, MICROSOFT OUTLOOK?

A: YES.

Q: NOW, SPECIFICALLY WITH REGARD TO THE E-MAIL SYSTEM BELONGING TO LACOE, DID YOU SPEAK WITH MR. KEITH OR ANY OTHER INDIVIDUAL ABOUT HOW THOSE SYSTEMS ARE CONFIGURED?

A: YES.

Q: DID YOU HAVE AN OPPORTUNITY TO EXAMINE ANY LOGS OR SEE HOW THE SYSTEM OPERATES?

A: I EXAMINED THEIR INVESTIGATION PAPERWORK. THEY GAVE ME HANDWRITTEN INFORMATION THAT THEY HAD DONE.

Packet Sniffer

Q: NOW, WHAT METHODS DID MR. KEITH TELL YOU THAT THEY USED IN ORDER TO INVESTIGATE AND DISCOVER THE IP ADDRESS WHERE THIS ORIGINAL E-MAIL CAME FROM?

A: FIRST THEY LOOKED UP JUST A MERE LISTING FOR THE IP ADDRESSES AND DETERMINED WHERE THE ACTUAL COMPUTER THAT THEY SUSPECTED WAS THE CENTER OF THIS E-MAIL AND SECONDLY - -

Q: LET ME STOP YOU THERE. WHAT INFORMATION DID THEY OBTAIN WHEN THEY MAKE THAT HOOK-UP?

A: THEY DETERMINED THAT IT WAS DEFENDANT'S WORK COMPUTER.

Q: AFTER THEY MADE THE DETERMINATION THAT THE E-MAIL MESSAGES CAME FROM DEFENDANT'S WORK COMPUTER, WHAT IF ANY, STEPS DID THEY TAKE NEXT?

A: THEY TOOK - - PUT ON WHAT THEY REFER TO AS A SNIFFER, A LAP-TOP COMPUTER. THEY SET UP A MACINTOSH LAP TOP COMPUTER BASICALLY IN THE ROUTER AREA AND - - AND CAPTURED THE DATA BEING TRANSFERRED FROM TO DEFENDANT'S MACHINE THROUGH THE ROUTER AND THE SERVERS.

Q: NOW, DID THEY KEEP ANY LOGS OR RECORDS OF WHAT WAS CAPTURED?

A: YES.

Q: DID THEY PROVIDE THOSE LOGS OR RECORDS TO YOU?

A: YES.

Q: NOW, BASED UPON YOUR EXAMINATION OF THOSE LOGS, WHAT WAS HAPPENING OR WHAT WAS HAPPENING AT DEFENDANT'S IP OR IP ADDRESS LOCATED AT LACOE?

A: DATA FROM HIS WORK MACHINE, WAS BEING SENT THROUGH THE SERVER AND OUT INTO THE INTERNET WORLD WIDE WEB THROUGH A PROGRAM CALLED MAILSTART.

Defendant's Access to Email

Q.LET'S TALK A LITTLE ABOUT E-MAIL SENT BACK AND FORTH BETWEEN LACOE MEMBERS. ARE THEY ENCRYPTED?

A: TO THE SERVER ITSELF, THE MESSAGES ITSELF, ARE ENCRYPTED. EVEN THE SNIFFER CANNOT SEE DATA THAT IS BEING TRANSFERRED, ONLY THE TO, FROM AND THE SUBJECT LINE IS ACTUALLY READ. EVERYTHING ELSE IS ENCRYPTED.

Q: AS PART OF DEFENDANTS WORK ASSIGNMENT, DID HE HAVE PERMISSION TO READ ANYONE ELSE E-MAIL OTHER THAN HIS OWN?

A: NO.

MR. SHEAKS: OBJECTION, FOUNDATION.

THE COURT: OVERRULED.

BY MR. FAIRTLOUGH:

Q: ACCORDING TO MS. GOGOLIN, DID DEFENDANT HAVE AUTHORITY TO READ ANYONE ELSE'S E-MAIL, OTHER THAN HIS OWN?

A: NO.

Q: DID YOU SPEAK WITH ANYONE AT THE L.A. COUNTY OFFICE OF EDUCATION, THAT INDICATED THAT IN ANY WAY IN THE PERFORMANCE OF DEFENDANT'S DUTIES, HE HAD THE AUTHORITY TO ACCESS SOMEONE ELSE'S MAILBOX AND READ THE MAIL WITHIN IT?

A: NO.

Forensic Examination

Q: SIR, AT SOME POINT IN TIME, DID YOU SERVE A SEARCH WARRANT ON THE HOME OF THE DEFENDANT?

A: YES.

Q: NOW, WHEN YOU SERVED THE WARRANT AT DEFENDANTS HOME, DID YOU FIND ANY COMPUTERS OR COMPUTER SYSTEMS THERE?

A: YES.

Q: AS A RESULT OF YOUR WARRANT, DID YOU SEIZE THOSE COMPUTERS AND THE HARD DRIVES OR OTHER MEDIA CONTAINED THERE?

A: WE SEIZED ALL THE COMPUTER LAP TOPS EXCEPT FOR ONE COMPUTER.

Q: NOW, AFTER YOU SEIZED THESE PARTICULAR COMPUTERS AND OTHER MEDIA, DID YOU CONDUCT A FORENSIC EXAMINATION ON THE COMPUTER SYSTEMS?

A: YES.

Q: HOW DID YOU CONDUCT THAT FORENSIC EXAMINATION?

A: I MADE AN EXACT IMAGE OF THE HARD DRIVE OF THE COMPUTERS SEIZED WITH THE PROGRAM CALLED ENCASE BY GUIDANCE SOFTWARE.

Q: DOES THE ENCASE PROGRAM MAKE AN EXACT DUPLICATE OF THE MATERIAL CONTAINED ON THE DEFENDANT'S HARD DRIVE?

A: YES.

Q: AFTER THE COPY OF THE PROGRAM HAS BEEN MADE, IS THERE A MATHEMATICAL FORMULA RUN IN ORDER TO CHECK THE ORIGINAL DRIVE VERSUS THE COPIED DRIVE?

A: YES. IT'S REFERRED TO AS HASH. IT'S AN ALGORITHM USED TO CONFIRM THE ORIGINAL DRIVE AND THE VERIFIED DRIVE ARE ONE AND THE SAME THAT AN ACCURATE COPY IS MADE. IF ONE SINGLE KEYSTROKE IS CHANGED, WHAT WE CALL A BITE, THE HASH WILL NOT MATCH.

Q: AFTER YOU HAVE CONDUCTED AN EXAMINATION ON AN ENCASE DRIVE, DO YOU RUN AN ADDITIONAL HASH IN ORDER TO SHOW THAT THE DRIVE YOU EXAMINED HAS NOT BEEN CHANGED OR ALTERED?

A: THERE IS A VERIFICATION HASH.

Q: THERE IS A NUMBER GENERATED RIGHT AT THE ORIGINAL COPY, AND THE SAME NUMBER SHOULD SHOW UP AT THE END OF THE EXAMINATION; IS THAT CORRECT?

A: AT THE END OF THE COPY MADE.

Q: NOW, ONCE A COPY OF A DRIVE HAS BEEN MADE VIA ENCASE, DO YOU HAVE ANY ABILITY TO ALTER OR CHANGE THE DATA CONTAINED ON THE ENCASE DRIVE?

A: NOT ON THE IMAGE, NO.

Q: NOW, DID YOU CONDUCT A FORENSIC SEARCH OF THE IMAGED COPIES OF THE DEFENDANT'S HARD DRIVE?

A: YES.

Q: AS A RESULT OF THAT SEARCH, DID YOU FIND ANY COPIES OF E-MAIL THAT WERE FROM AND TO LACOE EMPLOYEES OTHER THAN DEFENDANT?

A: HUNDREDS OF E-MAIL, HUNDREDS, IN PORTIONS OF UN-ALLOCATED SPACE, ALLOCATED SPACE, SLACK AREA. THERE WAS JUST HUNDREDS OF E-MAIL ADDRESSES.

Explanation of Mail Stop

Q: DID YOU HAVE A CONVERSATION WITH THE OWNER OF MAILSTART AS TO HOW HIS COMPUTER PROGRAM WORKS?

A: YES.

Q: AND BASED UPON THAT CONVERSATION AND UPON YOUR EXPERTISE, CAN YOU EXPLAIN TO THE COURT THE METHOD OF HOW THE MAILSTART PROGRAM WORKS?

A: BASICALLY, IF YOU GO TO MAILSTART.COM, IT GIVES YOU THE OPPORTUNITY TO WRITE IN THE USER NAME, E-MAIL ADDRESSES AND PASSWORDS, AND IT WILL GO INTO THAT MAILBOX AND BRING IT UP. IF THE MAIL SYSTEM USES A SEPARATE SERVER SYSTEM, YOU HAVE TO PUT

IN WHAT WE CALL THE POST OFFICE PROTOCOL WHICH IS WHAT THEY CALL A POP3, BUT IT ULTIMATELY WILL THEN BRING UP YOUR E-MAIL, AND YOU CAN GET IT FROM THE WEB ANYWHERE ON THE WIDE WORLD WEB.

Q: SO, IF A COMPANY IS USING A POP3 TYPE OF MAIL SERVICE, AND I KNOW THE USER NAME, THE E-MAIL NAME, THE PASSWORD AND THE POP3 ADDRESS INFORMATION FOR WHERE THE INFORMATION IS LOCATED USING MAILSTART; I CAN GO AND THEN READ THE E-MAIL FROM THAT PERSON'S E-MAIL INBOX?-

A: IN MOST SITUATIONS, YES

Q: NOW, IS IT POSSIBLE ALSO TO BLOCK ACCESS BY THAT PARTICULAR SYSTEM?

A: YES, I HAVE HAD L.A. COUNTY'S BLOCKED.

Q: HOWEVER, FOR EXAMPLE, I COULD BE AT HOME AND READ AN E-MAIL BOX FOR MY WORK?

A: CORRECT.

Q: FOR A SYSTEM THAT IS ONLY ACCESSIBLE NORMALLY IN- HOUSE?

A: CORRECT.

Presenting a Found Email

MR. FAIRLOUGH: YOUR HONOR, THE NEXT DOCUMENT WHICH I WILL REQUEST TO BE MARKED AS PEOPLE'S 4, IS A ONE-PAGE DOCUMENT AS WELL. THIS RELATES TO COUNT 2 AND COUNT 3 .

THE COURT: SO MARKED.

MR. FAIRLOUGH: I AM PLACING A P-4 ON THE BOTTOM RIGHT-HAND CORNER, AND IT IS MARKED WITH DATE STAMP NUMBER 0120. SHOWING IT TO COUNSEL.

Q: SHOWING YOU WHAT HAS BEEN MARKED AS PEOPLE'S EXHIBIT 4.

.. DO YOU RECOGNIZE THIS DOCUMENT?

A: YES. THIS IS ANOTHER PRINTOUT THAT I MADE FROM THE TEMPORARY INTERNET FILES OF DEFENDANT'S COMPUTER HARD DRIVE.

Q: AND IS THIS ANOTHER E-MAIL - - IS THIS ANOTHER LACOE E-MAIL ACCOUNT BEING ACCESSED VIA MAILSTART?

A: YES.

Q: WHAT IS THE NAME OF THE E-MAIL ACCOUNT ON THIS PARTICULAR DOCUMENT?

A: WAGNER, W-A-G-N-E-R - NANCY@LACOE.EDU.

Q: ON NOVEMBER 9TH, 2000, DID YOU SPEAK WITH MS. NANCY WAGNER?

A: YES.

Q: AND IS MS. NANCY WAGNER THE DIRECTOR OF CAREER AND WORK FORCE DEVELOPMENT AT LACOE?

A: YES.

Q: DID YOU SHOW MS. WAGNER THIS PARTICULAR DOCUMENT?

A: YES.

Q: DID SHE IDENTIFY THIS AS BEING THE CONTENTS OF HER E-MAIL?

A: CORRECT.

Q: DID SHE AUTHORIZE DEFENDANT TO ACCESS HER E-MAIL?

A: NO.

Q: DID SHE KNOW THAT DEFENDANT WAS ACCESSING HER E-MAIL?

A: NO.

Q: DID MS. WAGNER HAVE A BELIEF WITH REGARDS TO THE PRIVACY OF THE E-MAIL CONTAINED AT LACOE?

A: YES.

Q: WHAT, IF ANYTHING, WAS HER BELIEF WITH REGARD TO THAT PRIVACY ISSUE?

MR. SHEAKS: OBJECTION, RELEVANT.

MR. FAIRTLOUGH: THIS DIRECTLY GOES TO THE ISSUE OF PERMISSION, WHICH IS THE ELEMENT OF THE CRIME OF PENAL CODE 502(C).

THE COURT: RIGHT. I'LL ALLOW IT.

THE WITNESS: HER OPINION WAS THAT IT WAS CONFIDENTIAL AND THAT ONLY THE SENDER AND THE RECEIVER SAW THE E-MAIL MESSAGES.

BY MR. FAIRTLOUGH:

Q: WAS ANYONE ALLOWED TO MOVE, ALTER OR TAKE E-MAIL, ACCORDING TO HER, WITHOUT MANAGEMENT PERMISSION?

A: NO.